deposit, security, goods or compensation recoverable in an action arising from the cancellation; and

(iii) the effect of cancellation under section 9(12) on any rights the parties to the contract may otherwise have; and

(*n*) prescribing the offences that may be compounded under section 34.

[20
[25/2016]

Saving and transitional provisions

44.—(1) Any proceedings for a declaration or an injunction commenced by the Board under section 9 or 10 before 2 April 2018 and pending on that date may be continued by the Commission as if the proceedings had been commenced by the Commission.
[10/2018]

(2) Any order made by the District Court or High Court under section 9 or 10 before 2 April 2018 requiring any person to notify, inform, reimburse or do anything in relation to, the Board, which remains unsatisfied on that date, is satisfied if the person notifies, informs, reimburses or does that thing in relation to, the Commission.
[10/2018]

(3) Any investigation commenced by the Board under Part 3A before 2 April 2018 and pending on that date may be continued by the Commission as if it had been commenced by the Commission.
[10/2018]

(4) In this section, "Board" means the Standards, Productivity and Innovation Board established by section 3 of the Standards, Productivity and Innovation Board Act (Cap. 303A, 2002 Revised Edition) as in force immediately before 2 April 2018.

[21
[10/2018]

FIRST SCHEDULE

Sections 2(1) and 42

EXCLUDED TRANSACTIONS IN RELATION TO CONSUMER TRANSACTIONS

1. The term "consumer transaction" does not include any of the following transactions:

(*a*) acquisition of an estate or interest in any immovable property (but not including any lease of residential property granted in consideration of rent or any time share contract);

(*b*) (to avoid doubt) service provided under a contract of employment.

[S 387/2016; 7/2012]

SECOND SCHEDULE

Sections 4(*d*) and 42

PART 1

SPECIFIC UNFAIR PRACTICES

1. Representing that goods or services have sponsorship, approval, performance characteristics, accessories, ingredients, components, qualities, uses or benefits that they do not have.

2. Representing that the supplier has a sponsorship, approval or affiliation with respect to the supply of goods or services that the supplier does not have.

3. Making a false or misleading representation concerning the need for any goods or services.

4. Representing that goods or services are of a particular standard, quality, grade, style, model, origin, weight, volume, length, capacity or method of manufacture (as the case may be) if they are not.

5. Representing that goods are new or unused if they are not or if they have deteriorated or been altered, reconditioned or reclaimed.

6. Representing that goods have been used to an extent different from the fact or that they have a particular history or use if the supplier knows it is not so.

7. Representing that goods or services are available or are available for a particular reason, for a particular price, in particular quantities or at a particular time if the supplier knows or can reasonably be expected to know it is not so, unless the representation clearly states any limitation.

SECOND SCHEDULE — *continued*

19. Offering gifts, prizes or other free items in connection with the supply of goods or services if the supplier knows or ought to know that the items will not be provided or provided as offered.

20. Representing that goods or services are available at a discounted price for a stated period of time if the supplier knows or ought to know that the goods or services will continue to be so available for a substantially longer period.

21. Representing that goods or services are available at a discounted price for a particular reason that is different from the fact.

22. Making an invitation to a consumer to purchase, or making an offer to sell to a consumer certain goods or services (called in this paragraph the original goods or services) at a certain price and then, with the intention of promoting different goods or services —

(*a*) refusing to show or demonstrate the original goods or services to the consumer;

(*b*) refusing to take any order for the original goods or services;

(*c*) refusing to supply the original goods or services in a reasonable time; or

(*d*) showing or demonstrating a defective sample of the original goods.

23. Omitting to provide a material fact to a consumer, using small print to conceal a material fact from the consumer or misleading a consumer as to a material fact, in connection with the supply of goods or services.

24. Accepting payment or other consideration for the supply of goods or services when the supplier knows or ought to know that the supplier will not be able to supply the goods or services —

(*a*) within the period specified by the supplier at or before the time at which the payment or other consideration is accepted; or

(*b*) if no period is specified at or before that time, within a reasonable period.

25. Purporting to assert a right to payment for the supply of unsolicited goods or services.

26. Sending to a consumer an invoice or document that states the amount of payment for the supply of unsolicited goods or services which does not contain, as the document's most prominent text, the following (or words to that effect):

"This is not a bill. You are not required to pay any money.",

SECOND SCHEDULE — *continued*

unless the consumer has expressly acknowledged to the supplier in writing the consumer's intention to accept and pay for such goods or services.

27. Where an applicable agreement has been entered into in writing and a copy of the applicable agreement has not been given to the consumer, refusing to give the consumer a copy of the applicable agreement upon the consumer's request.

PART 2

INTERPRETATION

1. For the purpose of paragraph 25 of Part 1 —

(*a*) "unsolicited goods or services" means goods or services that are supplied in relation to a consumer transaction to a consumer who did not request them, but does not include goods or services supplied to a consumer who knows or ought to have known that they were intended for delivery to another person unless it was reasonable to believe that the goods or services, if delivered to that other person, would have been unsolicited goods or services; and

(*b*) if a consumer is being supplied with goods or services on a continuing basis and there is a material change in the goods or services, or in the supply of the goods or services, the goods or services are to be treated as unsolicited goods or services from the time of the material change unless the consumer consented in writing to the material change.

2. An intention to accept and pay for goods or services (for the purposes of paragraph 26 of Part 1) or a request for goods or services (for the purposes of the definition of "unsolicited goods or services" in paragraph 1(*a*)) or consent to a material change (for the purposes of paragraph 1(*b*)) is not to be inferred only from the consumer's —

(*a*) payment for the goods or services;

(*b*) use of, dealing with or disposal of the goods or services;

(*c*) request to purchase another similar good or service; or

(*d*) inaction.

3.—(1) For the purpose of paragraph 27 of Part 1, "applicable agreement" means an agreement between a supplier and a consumer for the supply of goods or services which expressly provides that —

(*a*) the goods or services will not be supplied or, in the case of an agreement to supply goods or services over a period of time, will not